

IN THE COURT OF APPEAL (CIVIL DIVISION)

Case No: CA-2018-006090

BETWEEN:

MRS ELEANOR BLACKWOOD

Appellant

- and -

MR JAMES BLACKWOOD

Respondent

RESPONDENT'S SKELETON ARGUMENT

A. INTRODUCTION

1. The Respondent denies breach of trust and contends that his administration has been proper, that any transactions complained of were authorised by the trust deed or by the beneficiaries, and that the claim is time-barred.

B. RELEVANT FACTS

2. The property transaction was approved by independent valuation and all beneficiaries were informed.
3. Investment performance reflects conservative strategy appropriate for the trust's objectives.
4. Distributions have been made in accordance with the trustee's discretion under the trust deed.
5. The Appellant received what she requested and made no complaint at the time.
6. The claim for account relates to matters more than six years old.

C. LEGAL FRAMEWORK

7. The relevant statutory provisions are:
 - Trustee Act 1925
 - Trustee Act 2000
 - Limitation Act 1980, s.21

D. SUBMISSIONS

8. The property sale was properly conducted with independent oversight.

9. Investment decisions were reasonable and within the trustee's discretion.
10. Distributions were proper exercises of discretion.
11. Claims relating to matters before 2018 are time-barred.

E. AUTHORITIES

12. The following authorities are relied upon:

- Re Pauling's Settlement Trusts [1964] Ch 303
- Walker v Stones [2001] QB 902
- Paragon Finance Plc v DB Thakerar & Co [1999] 1 All ER 400

F. RELIEF SOUGHT

13. The Respondent respectfully requests that this Court:

- Dismiss the claim
- Alternatively, strike out time-barred claims
- Costs

Emma Roberts KC

Sarah Clarke

10 May 2025

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